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Applications in the Bidāyat al-mujtahid

Editorial comparisons, not Ibn Rushd's text. These examples do not constitute a complete legal commentary.

18 · Marriage: one form of act, different legal rulings

Marriage · ch. 1, preliminaries, issue 1: the legal status of marriage

The majority recommend marriage; the Ẓāhirīs require it; later Mālikīs distinguish obligatory, recommended and permitted marriage according to the person's circumstances. Ibn Rushd identifies both the interpretation of imperative expressions and an appeal to welfare as causes of the disagreement. This illustrates the distinction between an act's general description and the ruling applicable to a situated agent. It does not prove that an imperative by itself encodes all those contextual differences. The welfare argument reported here should also be compared with the stricter controls of Darūrī §§146 and 217.

§18 · §197 · §200 · §217

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23 · Wiping the head: a minimum performance and a contested particle

Purification from ritual impurity · Book of Wuḍūʾ, ch. 2, issue 6: the extent of wiping the head

Mālik requires the whole head, al-Shāfiʿī allows part, and Abū Ḥanīfa specifies a quarter. Ibn Rushd relates the disagreement to the bāʾ in Q 5:6—whether emphatic or partitive—and to reports describing the Prophet's wiping. Even on the emphatic reading, the amount satisfying the name of the act remains disputed. This is a representative application of the Darūrī's minimum-sufficiency problem, but one in which grammar and transmitted practice jointly determine the legally adequate minimum.

§23 · §165 · §205

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28 · Proposing over another proposal: prohibition and contractual effect

Marriage · ch. 1, preliminaries, issue 3: proposing over another man's proposal

Jurists distinguish the prohibition of intervening in an existing proposal from the validity of the ensuing marriage. Ibn Rushd records invalidation by Dāwūd, validity according to al-Shāfiʿī and Abū Ḥanīfa, and differing Mālikī outcomes. The question is whether the forbidden preliminary act vitiates the contract or is an independently culpable circumstance. Read this alongside the Darūrī's distinctions of aspect and the later question whether prohibition entails invalidity; the note identifies a legal parallel, not an explicit cross-citation between the books.

§28 · §56 · §206

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38 · Zakāt on a child's property: worship or a claim upon wealth?

Zakāt · first division: those liable; property belonging to minors

Mālik, al-Shāfiʿī and others impose zakāt on a minor's property; other views exempt it or distinguish agricultural produce. Ibn Rushd identifies the underlying question: is zakāt principally worship requiring adult responsibility, or a financial right of the poor in wealth? The latter need not depend on the owner's puberty. This demonstrates why exemption from direct moral obligation does not automatically remove every legal consequence affecting a child's property.

§38 · §42 · §55

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43 · Intention in ablution: devotional act and intelligible cleansing

Purification from ritual impurity · Book of Wuḍūʾ, ch. 2, issue 1: intention as a condition of validity

Mālik, al-Shāfiʿī and others require intention; Abū Ḥanīfa and al-Thawrī do not. Ibn Rushd locates ablution between pure devotion and an act whose cleansing purpose is intelligible. The relevant inquiry is which resemblance governs its legal classification. Read beside Darūrī §43, this shows that intending obedience and performing an objectively effective act are distinguishable questions, and that a condition of worship cannot simply be transferred to every act associated with worship.

§43 · §56 · §218

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47 · Coerced divorce: voluntary utterance is not sufficient freedom

Divorce · second division, ch. 2: the person whose divorce is legally effective; coerced divorce

Abū Ḥanīfa treats the coerced utterance as effective, whereas Mālik, al-Shāfiʿī and others do not. Ibn Rushd locates the dispute in the sense of choice: the speaker chooses the words, but the threat may still make him "coerced" in the Law's usage. He invokes Q 16:106 against identifying every chosen utterance with unqualified freedom. This sharpens Darūrī §47: physical possibility, intention, legal coercion and the effect of an act must be distinguished.

§47 · §43 · §45

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55 · Financial maturity: an operative condition or its official recognition?

Interdiction · ch. 2: release of minors from interdiction; those under an executor

Some Mālikī positions continue to invalidate transactions until an executor or judge formally releases the ward. Ibn al-Qāsim gives decisive weight to actual maturity or improvidence. Ibn Rushd criticizes treating the continued formal status as controlling when maturity is established: the operative consideration is maturity, not the judge's declaration. This provides an institutional illustration of the difference between a condition's existence and a procedure which establishes or announces it, without reducing all judicial acts to mere factual reports.

§55 · §42 · §56

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56 · A remoter guardian: invalidity, permission, or ratification

Marriage · ch. 2; conditions of contract; guardians, third topic, issue 1: a remoter guardian contracts while the nearer is present

For the cases under discussion, Mālik's transmitted positions include invalidity, validity and dependence on the nearer guardian's approval. Ibn Rushd explains the alternatives through three questions: is priority a rule of revelation at all; if so, is it the nearer guardian's right; or is it a right of God? These yield, respectively, validity, a ratifiable contract, or invalidity. The ruling is not produced simply by attaching the word "condition" to priority. The discussion excludes certain father–virgin-daughter and executor cases from that threefold variation.

§56 · §36 · §54

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58 · A traveller who fasts: an implied condition in the verse

Fasting · ch. on those permitted to break the fast; the traveller's performance of the fast

A minority requires the travelling person to make up the days even if he fasts; the majority accepts his fast. Ibn Rushd connects the disagreement to whether Q 2:184 implicitly says "and breaks the fast" before requiring other days, alongside reports allowing travelling Companions to fast or refrain. This illustrates both the classification of a concession and the interpretation of an omitted condition. It must not be read as though the mere grammatical form settled the whole dispute.

§58 · §155 · §194

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64 · The basmala: Qurʾānic wording and membership in a sūra

Prayer · third division, verbal constituents, issue 4: reciting the basmala

The practical disagreement concerns reciting the basmala and whether aloud or silently. Ibn Rushd separates uncertainty about its status as a verse of al-Fātiḥa from denying that the wording is Qurʾānic at all. He also analyses conflicting reports of the Companions' practice. This parallels Darūrī §64, while warning against an over-simple appeal to mass transmission: the identity of transmitted words and their structural membership in a particular sūra are distinct propositions.

§64 · §75 · §112

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146 · An absent father: welfare within a structured legal situation

Marriage · ch. 2; guardians, third topic, issue 3: the father's absence

The Mālikī distinctions turn on distance, knowledge of the father's whereabouts, maintenance, protection and the woman's need to marry. Ibn Rushd then suggests that urgent risk might justify the ruler's intervention even when the father is relatively near. This is a concrete use of welfare-oriented reasoning, not an unrestricted power to legislate. Its relation to the Darūrī's demand for an acknowledged warrant remains a question of interpretation: the later case develops an existing institution's purpose, but does not expressly cite that earlier restriction.

§146 · §217

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158 · Touching women: equivocation, generality and counterevidence

Purification from ritual impurity · Book of Wuḍūʾ, ch. 4, issue on touching women

Ibn Rushd explains that touching in Arabic can mean contact by the hand or signify intercourse. Among those taking bodily contact, some require pleasure and others do not; reports about contact between the Prophet and ʿĀʾisha enter the assessment. The first disagreement concerns competing meanings, the second the scope of a selected meaning. This clarifies why the Darūrī distinguishes equivocation from generality: collecting two possible meanings is not the same operation as including all instances under one universal.

§158 · §167 · §177

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160 · Minimum dower: clarification cannot be postponed beyond need

Marriage · ch. 2; conditions of contract; dower, first topic, issue 2: its amount

In Sahl's marriage report, the request for even an iron ring is taken against a fixed minimum. Ibn Rushd expressly argues that a required threshold would have needed explanation at that moment. He also disputes the premises that dower is purely worship and that worship must always be quantitatively fixed. This is a direct application of the rule against delaying clarification beyond need, rather than a merely suggestive similarity supplied by the present editor.

§160 · §23 · §166

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167 · The sales-session option: what counts as “separation”?

Sales · part 3, conditions of validity, ch. 1: the contract and the parties’ option before separation

Mālik and Abū Ḥanīfa make the completed exchange binding without physical separation; al-Shāfiʿī and others retain the session option. Ibn Rushd examines whether the report concerns bodily separation or completion of bargaining. He weighs the strong Ibn ʿUmar report against Medinan practice, another report’s weakness, analogies to other contracts, and the general command to fulfil contracts. The case joins semantic interpretation to evidential preference: a plausible lexical reinterpretation is not enough unless proportionate evidence supports it.

§167 · §138 · §166 · §256

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171 · Guardianship: a disputed condition cannot be established by ambiguity alone

Marriage · ch. 2, conditions of validity; guardians, first topic: whether guardianship is a condition

In examining marriage guardianship, Ibn Rushd tests the scope of Qurʾānic expressions and the guardian-permission reports rather than treating every apparent address to guardians as a decisive condition of validity. He also considers whether such a widespread requirement could have remained insufficiently explained. The case exemplifies the evidential burden for a restrictive interpretation. It is especially pertinent to Darūrī §171, which rejects an excessively remote narrowing of the permission report; the Bidāya’s fuller argument must not be reduced to that single objection.

§171 · §160 · §166

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201 · Pilgrimage now or later: a control against a simplistic application

Pilgrimage · first kind of inquiry: when the pilgrimage obligation falls due

Ibn Rushd explicitly denies that the dispute is merely whether an unrestricted command demands immediacy. The competing arguments compare the first available pilgrimage season with the beginning or end of prayer-time, consider the interval when pilgrimage cannot be performed, and assess the risk of death before another year. This is a useful counterexample to a mechanical concordance: Darūrī §201 supplies distinctions, but the Bidāya warns that the applied dispute has additional temporal structure.

§201 · §21 · §25

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204 · Completing ʿumra does not by itself prove an initial duty to begin it

Pilgrimage · first kind of inquiry: the legal status of ʿumra

One argument for obligation invokes Q 2:196’s command to complete pilgrimage and ʿumra. The opposing reading takes completion to govern an observance once begun, whether its initiation was obligatory or voluntary. Ibn Rushd also records conflicting reports. The lesson is the distinct scope of commands: an obligation to complete an undertaking need not establish an obligation to undertake it. Compare the Darūrī’s insistence that a further performance needs its own warrant, rather than extending a command beyond its demonstrated conditions.

§204 · §49 · §205

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206 · Menstrual divorce: a forbidden act may still have legal effect

Divorce · first division, ch. 2: Sunnī and irregular divorce; divorce during menstruation

The majority count a divorce pronounced during menstruation, while another position does not. Ibn Rushd distinguishes conditions of validity from conditions of proper or complete performance and examines the command that Ibn ʿUmar take his wife back. This provides an especially clear application of the Darūrī's question about prohibition and invalidity. Whether an act is forbidden and whether it produces a legal consequence are different inquiries; their relation must be demonstrated from the relevant address and reports.

§206 · §28 · §56

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211 · Foetal compensation: the identity of the right-holder matters

Offences and injuries · second part, compensation; accidental loss of a foetus, question "to whom is it due?"

Mālik, al-Shāfiʿī and Abū Ḥanīfa treat the compensation as inheritable by the foetus's heirs. Rabīʿa and al-Layth assign it to the mother, comparing the foetus with one of her bodily parts. The dispute illustrates that identifying the legal subject precedes assigning a consequence. It is related to Darūrī §211's caution about the original and derivative terms of an analogy, not a textual claim that the two passages explicitly cross-reference each other.

§211 · §218 · §238

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214 · Jewellery: resemblance to usable possessions or to monetary wealth?

Zakāt · second division: assets subject to zakāt; gold and silver jewellery

The Ḥijāzī jurists exempt jewellery intended for adornment; Abū Ḥanīfa includes it. Ibn Rushd attributes the disagreement chiefly to its double resemblance: usable possessions on one side, gold and silver serving exchange on the other. Conflicting reports matter, but he regards them as weak, especially the exemption report. This is a particularly accessible example of competing analogical descriptions; disagreement about the case's legally relevant likeness need not amount to disagreement about the underlying commodity itself.

§214 · §218 · §238

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217 · Deathbed divorce: blocking an evasion without erasing doctrinal difficulty

Divorce · second division, ch. 2: irrevocable divorce during fatal illness

Some jurists preserve the divorced woman's inheritance because the husband may be evading her entitlement; others apply divorce's ordinary consequences. Ibn Rushd expressly identifies blocking the means (sadd al-dharāʾiʿ) as the issue, but also questions a hybrid status retaining only selected effects of marriage. He rejects a claim of Companion consensus because Ibn al-Zubayr's disagreement is known. Thus purposive prevention and proof of consensus require distinct warrants; the case is not evidence that every welfare argument is self-validating. The Darūrī itself cites this case in §217 while rejecting excessively remote welfare arguments; the difference of framing is therefore substantive.

§217 · §135 · §137

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218 · Ribā in foodstuffs: competing identifications of the operative feature

Sales · part 2, causes of invalidity; ribā in the named foodstuffs and their analogues

Mālikī analysis emphasizes staple, storable food; al-Shāfiʿī emphasizes edibility; Ḥanafī reasoning emphasizes weight or measure. Ibn Rushd treats the dispute as identifying the meaning behind the named commodities, while also evaluating the rival rationales. This corresponds closely to the Darūrī's account of resemblance and uncertain grounds. Yet the Bidāya's comparative assessment is more developed than a blanket dismissal: no uniform verdict on all "analogy" should be imported from either book into the other.

§218 · §212 · §214 · §238

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223 · Dower and the theft threshold: verbal resemblance is not one legal meaning

Marriage · ch. 2; dower, first topic, issue 2: critique of the minimum-dower analogy

The proposed analogy sets the minimum dower by the monetary threshold for theft. Ibn Rushd objects that the shared description of bodily "authorization" masks different meanings: punishment and injury differ from lawful marital enjoyment and affection. The relevant similarity must be one in meaning, not merely words, and must ground the original ruling. He distinguishes using this weak analogy to select an amount from establishing that a minimum exists at all.

§223 · §158 · §218

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227 · Triple divorce after mutual imprecation: the limits of tacit approval

Divorce · first division, ch. 2: whether three divorces may be pronounced together; the report of ʿUwaymir

One argument relies on the Prophet's not objecting when ʿUwaymir pronounced three divorces after mutual imprecation (liʿān). The counterargument is that liʿān had already severed the marriage: the utterance then effected no further divorce. Silence cannot establish permissibility for an act whose legally relevant object was absent. This is a precise application of Darūrī §227's contextual restriction: approval must concern the very act and circumstances for which authority is being claimed.

§227 · §150 · §229

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237 · A mistaken qibla: required success or adequately conducted inquiry?

Prayer · second division, conditions; facing the qibla, second issue

Al-Shāfiʿī requires repetition when an error in direction becomes known; Mālik and Abū Ḥanīfa do not impose the same unconditional repetition after due inquiry. Ibn Rushd identifies disagreement about whether correct orientation or the act of inquiry is required, and weighs a report against analogy with prayer before its time. The case illuminates Darūrī §§237–245 without proving that every mujtahid's conclusion is true: excusing an error and making its conclusion correct remain different claims.

§237 · §204 · §243

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243 · A physician's mistake: compensation need not imply moral wrongdoing

Offences and injuries · second part, compensation; accidental injury caused in medical treatment

Ibn Rushd reports compensation for a treatment error, while also recording a Mālikī exemption for a qualified practitioner and agreement on liability for an unqualified intruder. The analogy is with accidental injury; there is further disagreement about which fund bears payment. This is an illustrative legal parallel to the Darūrī's distinction between error and sin. It does not assimilate medical judgement to every form of juristic inquiry, nor does compensation alone establish culpability.

§243 · §38 · §244

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246 · Cupping while fasting: three ways of treating conflicting reports

Fasting · ch. on acts from which the fasting person abstains; cupping

A report invalidating the fast of cupper and cupped is set beside the report that the Prophet was cupped while fasting. Ibn Rushd describes disagreement over prohibition, dislike and permissibility, and examines preference, reconciliation and relinquishing the conflicting proofs. This makes concrete the Darūrī's alternatives when evidence appears equipollent. Returning to an original rule is itself a reasoned response to evidential failure; it is not the same as choosing whichever report one happens to prefer.

§246 · §214 · §247

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256 · Deferred animal barter: conflict can concern scope as well as authenticity

Sales · part 2, ribā; exchanging animals with deferred delivery

Reports allowing an animal to be exchanged for more animals with later delivery stand against a prohibition of deferred animal-for-animal exchange. Ibn Rushd records different evaluations and reconciliations, including Mālikī attention to whether the animals have distinct uses. The disagreement is not only over which chain is stronger: a proposed distinction of legal purposes may reconcile reports which otherwise conflict. This illustrates why Darūrī §§256–257 insist on a stronger judgement rather than an exhaustive mechanical list of preference rules.

§256 · §213 · §257
